

Western Australia

**Petroleum (Submerged Lands) Registration Fees
Act 1982**

As at 13 Feb 2004

Version 02-a0-04

Extract from www.slp.wa.gov.au, see that website for further information



ESI Foundation
[service name]
Operational level Agreement
Underpinning Agreement

Commented [1]: Pick OLA or UA

Service Provider	ESI Foundation	<u>Reprinted under the Reprints Act 1984 as at 13 February 2004</u>
First day of service delivery	[start date]	
Last day of service delivery	[end date]	
Status	[Draft/Final]	
Agreement finalization date	[date of final agreement]	
Agreement Link	[link to DocDB]	

Petroleum (Submerged Lands) Registration Fees Act 1982

Contents

Western Australia

**Petroleum (Submerged Lands) Registration Fees
Act 1982**

CONTENTS

1.	Short title	2
2.	Commencement	2
3.	Incorporation	2
4.	Imposition of registration fees	2
4A.	Regulations	6

Notes

	Compilation table	7
--	-------------------	---

DOCUMENT LOG

Issue



Date

Comment

Author

			Giuseppe La Rocca Małgorzata Krakowian
4.2	16/06/2017	First yearly review; added a reference to the availability and continuity plans if available	Alessandro Paolini
4.2.1	27/06/2018	Yearly review, only few minor corrections	Alessandro Paolini
4.2.2	03/07/2018	Some minor corrections, added a requirement for the CHM process in chapter 8.1	Alessandro Paolini
4.2.3	26/11/2018	Fix in role definition	Małgorzata Krakowian
4.3	08/08/2019	Yearly review, some minor corrections in the roles, updated sections on Violations, Escalations, and Complaints in order to be more strict with the Core Services	Alessandro Paolini

4.4

14/02/2020

Reprinted under the
Reprints Act 1984 as
at 13 February
2004 added in section 7
a rule about Data
Controller and Data
Processor roles, and
the need to sign Data
Processing
Agreements (the
section 7 actually
refers to the EGI
Default OLA)

Alessandro Paolini

Western Australia

Petroleum (Submerged Lands) Registration Fees Act 1982

An Act to provide for the payment of fees in respect of the registration of certain instruments under the *Petroleum (Submerged Lands) Act 1982*.

1. Short title

This Act may be cited as the *Petroleum (Submerged Lands) Registration Fees Act 1982*¹.

2. Commencement

(1) This Act shall come into operation on the day on which the *Petroleum (Submerged Lands) Act 1982* comes into operation¹.

(2) The Minister shall as soon as is practicable after the commencement of this Act cause notice of the commencement to be published in the *Gazette*.

3. Incorporation

This Act is incorporated, and shall be read as one, with the *Petroleum (Submerged Lands) Act 1982* (in this Act called “the principal Act”).

4. Imposition of registration fees

(1) In this section, “title” means a permit, lease, licence, pipeline licence or access authority.

(2) Subject to this section, there is payable to the Minister in respect of an entry in the register of a memorandum of the transfer of a title under section 78 of the *Petroleum (Submerged Lands) Act 1982* a fee at the rate of 1.5% of —

(a) the value of the consideration for the transfer; or

(b) the value of the title transferred.

whichever is the greater or, if the amount of that fee is less than the prescribed amount, a fee of the prescribed amount.

(3) Where —

(a) a fee imposed by this Act, as in force at any time, in respect of an entry of approval of an instrument or dealing, being a dealing or instrument pursuant to which the transfer of a title is agreed to, has been paid; and

(b) but for this subsection, the amount of the fee imposed by subsection (2) in respect of the entry of a memorandum of the transfer of the title, being a transfer executed for the purpose of giving effect to the dealing or instrument referred to in paragraph (a), would be greater than the prescribed amount,

the amount of the fee imposed by subsection (2) in respect of the entry of the memorandum of the transfer is the prescribed amount.

(4) Where —

(a) the parties to a transfer of a title lodged for approval under section 78 of the *Petroleum (Submerged Lands) Act 1982* satisfy the Minister that —

(i) they are related bodies corporate within the meaning of the *Corporations Act 2001* of the Commonwealth;

(ii) the transfer was executed solely for the purpose of a reorganization of the corporations concerned or any of them or solely for the purpose of securing the better administration of the corporations concerned or any of them; and

(iii) the transfer was not executed substantially for the purpose of avoiding or reducing the registration fees that would, but for this subsection, be payable under subsection (2) in respect of the entry of a memorandum of the transfer;

Petroleum (Submerged Lands) Registration Fees Act 1982

s. 4

_____ and

_____ (b) but for this subsection, the amount of the fee imposed by subsection (2) in respect of the entry of the memorandum of the transfer of the title would be more than the prescribed amount.

_____ the amount of the fee imposed by subsection (2) in respect of the entry of the memorandum of the transfer is the prescribed amount.

_____ (5) Subject to this section, there is payable to the Minister in respect of an entry in the register of the approval of a dealing under section 81 of the *Petroleum (Submerged Lands) Act 1982* a fee at the rate of 1.5% of —

_____ (a) the value of the consideration for the dealing or, if the Minister approves the dealing in relation to another title or titles, an amount equal to the value of the consideration for the dealing divided by the number of titles in relation to which the dealing is approved; or

_____ (b) in a case where —

_____ (i) the value of the interest in a title is greater than the amount applicable under paragraph (a);

_____ (ii) the dealing has an effect of the kind referred to in section 81(1)(a), (b) or (d) of the *Petroleum (Submerged Lands) Act 1982*; and

_____ (iii) the Minister is satisfied that the dealing was not made pursuant to another dealing or an instrument, being a dealing or instrument that relates to that title and in respect of an entry of approval of which a fee has been paid under this Act, as in force at any time.

_____ the value of the interest.

_____ (6) Where —

- (a) but for this subsection, the amount of the fee imposed by subsection (5) in relation to an entry of approval of a dealing would be less than the prescribed amount; or
- (b) an approval under section 81 of the *Petroleum (Submerged Lands) Act 1982* is given in respect of a dealing that is a dealing to which that section of that Act applies by reason only that the dealing creates, varies or terminates a charge over some or all of the assets of a body corporate,
- the amount of the fee imposed by subsection (5) in respect of the entry of that approval is the prescribed amount.
- (7) Where —
- (a) the parties to a dealing lodged for approval under section 81 of the *Petroleum (Submerged Lands) Act 1982* satisfy the Minister that —
- (i) they are related bodies corporate within the meaning of the *Corporations Act 2001* of the Commonwealth;
- (ii) the dealing was entered into solely for the purpose of a reorganization of the corporations concerned or any of them or solely for the purpose of securing the better administration of the corporations concerned or any of them; and
- (iii) the dealing was not entered into substantially for the purpose of avoiding or reducing the registration fees that would, but for this subsection, be payable under subsection (5) in respect of the entry of approval of the dealing;
- and
- (b) but for this subsection, the amount of the fee imposed by subsection (5) in relation to the entry of approval of the dealing would be more than the prescribed amount.

Petroleum (Submerged Lands) Registration Fees Act 1982

s. 4A

the amount of the fee imposed by subsection (5) in respect of the entry of approval of that dealing is the prescribed amount.

- (8) For the purposes of calculating the amount of the fee imposed by subsection (5) in respect of an entry of approval of a dealing, the value, as determined by the Minister, of any exploration works to be carried out pursuant to the dealing, being works that were, at the time when the application for approval of the dealing was lodged, required or permitted to be carried out by or under the relevant title, shall be deducted from the value of the consideration for the dealing or from the value of the interest in the relevant licence, as the case requires.

[Section 4 inserted by No. 13 of 1990 s. 4; amended by No. 20 of 2003 s. 39.]

4A. Regulations

The Governor may make regulations prescribing all matters that are required or permitted by this Act to be prescribed, or are necessary or convenient to be prescribed for giving effect to the purposes of this Act.

[Section 4A inserted by No. 13 of 1990 s. 5.]

[5. Omitted under the Reprints Act 1984 s. 7(4)(f).]

Notes

¹ This is a reprint as at 13 February 2004 of the *Petroleum (Submerged Lands) Registration Fees Act 1982* and includes the amendments made by the other written laws referred to in the following table. The table also contains information about any reprint.

Compilation table

TERMINOLOGY

The EGI glossary of terms is available at:
<https://wiki.egi.eu/wiki/Glossary>

For the purpose of this Agreement, the following terms and definitions apply. The key words "MUST", "MUST NOT", "REQUIRED", "SHALL", "SHALL NOT", "SHOULD", "SHOULD NOT", "RECOMMENDED", "MAY", and "OPTIONAL" in this document are to be interpreted as described in RFC 2119.

Contents

The Services	4
Service hours and exceptions	4
Support	5
Incident handling	5
Service requests	6
Service level targets	6
Limitations and constraints	7
Communication, reporting and escalation	7
General communication	7
Regular reporting	8
Violations	8
Escalation and complaints	9
Information security and data protection	9
Responsibilities	10
Of the Component Provider	10
Of the Service Provider	10
Review, extensions and termination	10

The present Agreement ("the Agreement") is made between **EGI Foundation (the Service Provider)** and **[provider name] (the Component Provider)** to define the provision and support of the provided services as described hereafter. Representatives and contact information are defined in Section 6.

This Agreement is valid from **[start date]** to **[end date]**.

The Agreement was discussed and approved by EGI Foundation and the Component Provider **[date]**.

The Component Provider(s) is (are) bound by the terms and conditions of the Corporate level EGI Operational Level Agreement[†] supplemented by the terms and conditions of this specific Agreement.

[†] <https://documents.egi.eu/document/2752>

1 The Services

The Services are defined by the following properties:

Short title	Technical	Number and year	Assent	Commencement
<i>Petroleum (Submerged Lands) Registration Fees Act 1982</i>	Coordination	34 of 1982	27 May 1982	14 Feb 1983 (see s. 2(1) and <i>Gazette</i> 25 Feb 1983)
<i>Petroleum (Submerged Lands) Registration Fees Amendment Act 1990</i>	Operation	13 of 1990	31 Jul 1990	1 Oct 1990 (see s. 2 and <i>Gazette</i> 28 Sep 1990)
<i>Corporations (Consequential Amendments) Act (No. 2) 2003</i>	Maintenance	20 of 2003	23 Apr 2003	15 Jul 2001 (see s. 2(1) and <i>Cwltz Gazette</i> No. S285)

Reprint 2: The Petroleum (Submerged Lands) Registration Fees Act 1982 as at 13 Feb 2004 (includes amendments listed above)

² The Petroleum (Submerged Lands) Registration Fees Amendment Act 1990 s. 6 reads as follows:

“

6. Application of principal Act

The principal Act continues to apply in relation to transfers to which section 78 of the *Petroleum (Submerged Lands) Act 1982* continues to apply by virtue of the operation of section 201(3) of the *Acts Amendment (Petroleum) Act 1990*.

”

~~2 Service hours and exceptions~~

~~As defined in Corporate level EGI Operational Level Agreement.~~

~~IT services according to the service catalogue are in general delivered during 24 hours per day, 7 days per week (i.e. 365 days or 8,760 hours), to seamlessly support business operations. Planned and announced interruptions may reduce the effective operating time of a service. The following exceptions apply:~~

- ~~● Planned maintenance windows or service interruptions ("scheduled downtimes"²) will be notified via email in a timely manner i.e. 24 hours before the start of the outage³, to the Customer through the Broadcast Tool⁴.~~
- ~~● Downtime periods exceeding 24 hours need justification.~~
- ~~● Human services are provided during support hours.~~

² ~~https://wiki.egi.eu/wiki/GOCDB/Input_System_User_Documentation#Downtimes~~

³ ~~<http://goc.egi.eu/>~~

⁴ ~~<https://operations.portal.egi.eu/broadcast>~~

Petroleum (Submerged Lands) Registration Fees Act 1982

Petroleum (Submerged Lands) Registration Fees Act 1982

3 Support

As defined in Corporate level EGI Operational Level Agreement.
Support is provided via EGI Service Desk⁵ Support Unit: <specify>

Support is provided via EGI Service Desk. Access requires a valid X.509 or the login via a EGI SSO account⁶.

Support is available between:

- Monday and Friday
- 9:00 and 17:00 CET/CEST time

This excludes public holidays at the same time in all organizations providing the service.

⁵ <http://helpdesk.egi.eu/>

⁶ <https://www.egi.eu/sso/>

3.1 Incident handling

As defined in Corporate level EGI Operational Level Agreement:

Incidents will be handled according to the Quality of Support level that is estimated according to the impact of the outage or service quality degradation.

The Quality of Support levels are defined as follows:

Base level defines a response time of 5 working days regardless of the GGUS ticket priority.

Medium level:

Incident priority ⁷	Response time
Less urgent	5 working days
Urgent	5 working days
Very Urgent	1 working day
Top Priority	1 working day

Advanced level:

Incident priority	Response time
Less urgent	5 working days
Urgent	1 working days
Very Urgent	1 working day
Top Priority	4 working hours

Response time is provided as service level target.

⁷ https://wiki.egi.eu/wiki/FAQ_GGUS_Ticket_Priority

Petroleum (Submerged Lands) Registration Fees Act 1982

Petroleum (Submerged Lands) Registration Fees Act 1982

3.2—Service requests

As defined in Corporate-level EGI Operational Level Agreement.

In addition to resolving incidents, standard service requests (e.g. change requests, information requests, documentation) will be fulfilled through the defined support channels in the same way as incidents. Service requests are classified as “Less urgent”.

4 Service level targets

Monthly Availability

- Defined as the ability of a service or service component to fulfil its intended function at a specific time or over a calendar month.
- Minimum (as a percentage per month): XX%

Monthly Reliability

- Defined as the ability of a service or service component to fulfil its intended function at a specific time or over a calendar month, excluding scheduled maintenance periods.
- Minimum (as a percentage per month): XX%

Quality of Support level

- Medium (Section 3)

5 Limitations and constraints

As defined in Corporate level EGI Operational Level Agreement.

The provisioning of the service under the agreed service level targets is subject to the following limitations and constraints:

- Support is provided in the following language: English
- Downtimes caused due to upgrades for fixing critical security issues are not considered Agreement violations.
- Force Majeure. A party shall not be liable for any failure or delay in the performance of this Agreement for the period that such failure or delay is due to causes beyond its reasonable control. Means any
 - fire, flood, earthquake or natural phenomena,
 - war, embargo, riot, civil disorder, rebellion, revolutionwhich is beyond the Provider's control, or any other causes beyond the Provider's control

Petroleum (Submerged Lands) Registration Fees Act 1982

Petroleum (Submerged Lands) Registration Fees Act 1982

~~6 Communication, reporting and escalation~~

As at 13 Feb 2004

Version 02-a0-04

page 7

Extract from www.slp.wa.gov.au, see that website for further information



Petroleum (Submerged Lands) Registration Fees Act 1982

Petroleum (Submerged Lands) Registration Fees Act 1982

6.1 General communication

The following contacts will be generally used for communications related to the service in the scope of this Agreement.

Service Provider contact	Alessandro Paolini operations@egi.eu EGI Foundation Operations officer
Component Provider contact	[name] [email] [title]
Service Support contact	See Section 3

Petroleum (Submerged Lands) Registration Fees Act 1982

Petroleum (Submerged Lands) Registration Fees Act 1982

6.2 Regular reporting

As part of the fulfilment of this Agreement and provisioning of the service, the following reports will be provided:

Report title	Contents	Frequency	Produced by	Delivery
Service Performance Report	The document provides an overall assessment of service performance (per month) and OLA target performance achieved during reporting period	Every 6 months starting []	Component Provider	Survey form prepared by []

Commented [2]: For the EGI Core Services, now the reporting period is 9 months

Commented [3]: (because the EOSC-hub reporting)

Commented [4]: EGI Core services

All reports shall follow predefined templates*:

* <https://documents.egi.eu/document/2748>

Petroleum (Submerged Lands) Registration Fees Act 1982

Petroleum (Submerged Lands) Registration Fees Act 1982

6.3—Violations

As defined in Corporate level EGI Operational Level Agreement:

The Component Provider commits to inform the Service Provider, if this Agreement is violated or violation is anticipated. The following rules are agreed for communication in the event of violation:

- In case of any violations of the Services targets, the Component Provider will provide justifications and a plan for Services enhancement to the Service Provider. The Component Provider will produce a status report and a Service enhancement plan for the improvement of the Services within one month from the date of the first notification.
- The Service Provider will notify the supporting Resource Centres in case of suspected violation via the EGI Service Desk. The case will be analysed to identify the cause and verify the violation.

Commented [5]: to be more strict with the Core Services

~~6.4 Escalation and complaints~~

~~For escalation and complaints, the Component Provider contact point shall be used, and the following rules apply:~~

- ~~• In case of repeated violation of the Services targets for two consecutive months or four months over a period of 12 months, a review of the Agreement and of the Services enhancement plan will take place involving the parties of the Agreement.~~
- ~~• Complaints or concerns about the Services provided should be directed to the Component Provider contact who will promptly address these concerns. Should the Service Provider still feel dissatisfied, about either the result of the response or the behaviour of the Component Provider, EGI Foundation Director director@egi.eu should be informed.~~

~~7 Information security and data protection~~

As defined in Corporate level EGI Operational Level Agreement

The following rules for information security and data protection apply:

- Assertion of absolute security in IT systems is impossible. The Component Provider is making every effort to maximize security level of users' data and minimize possible harm in the event of an incident.
- The Component Provider must define and abide by an information security and data protection policy related to the service being provided.
- This must meet all requirements of any relevant EGI policies or procedures^a and also must be compliant with the relevant national legislation.
- EGI Foundation holds the role of the Data Controller and Data Processing Agreements must be signed between EGI Foundation (the Data Controller) and Component provider (the Data Processors)

^a https://www.egi.eu/about/policy/policies_procedures.html

8—Responsibilities

Petroleum (Submerged Lands) Registration Fees Act 1982

Petroleum (Submerged Lands) Registration Fees Act 1982

8.1—Of the Component Provider

Additional responsibilities of the Component Provider are as follows:

- Adhere to all applicable operational and security policies and procedures⁺⁰ and to other policy documents referenced therein;
- Use communication channel defined in the agreement;
- Attend OMB⁺¹ and other operations meeting when needed;
- Accept EGI monitoring services provided to measure fulfilment of agreed service level targets.

(if software service)

- Service with associated roles is registered in GOC DB⁺² as site entity under EGI.eu Operations Centre hosting EGI central operations tools⁺³.
- Changes in the system must be rolled in production in a controlled way in order to avoid service disruption.

Commented [6]: Especially if the service is in the scope of CHM process

⁺⁰ https://www.egi.eu/about/policy/policies_procedures.html

⁺¹ <https://wiki.egi.eu/wiki/OMB>

⁺² <http://goc.egi.eu/>

⁺³ https://goc.egi.eu/portal/index.php?Page_Type=NGI&id=4

8.2—Of the Service Provider

The responsibilities of the Service Provider are:

- ~~Raise any issues deemed necessary to the attention of the Component Provider;~~
- ~~Collect requirements from the Resource Infrastructure Providers;~~
- ~~Support coordination with other EGI services~~
- ~~Provide monitoring to measure fulfilment of agreed service level targets.~~

~~9—Review, extensions and termination~~

~~There will be reviews of the service performance against service level targets and of this Agreement at planned intervals with the Service Provider according to the following rules:~~

- ~~• Technical content of the agreement and targets will be reviewed on a yearly basis.~~